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Sweden's Embassy in Bangkok
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Decision after supervision according to the VIS, SIS,
and Data Protection Regulation –
Sweden's Embassy in Bangkok

1. Decision of the Swedish Authority for Privacy Protection
The case is closed.

2. Account of the supervisory case
2.1 Purpose and method of the review

The Swedish Authority for Privacy Protection (IMY) has initiated supervision of Sweden's Embassy in Bangkok (hereinafter referred to as the embassy) to investigate the embassy's processing of personal data in relation to visa applications according to the VIS Regulation¹, the Border Regulation², and the Data Protection Regulation³. The supervision has also included the embassy's use of an external service provider, VFS Global, for the handling of visa applications.

IMY is required under the VIS Regulation and the Border Regulation to regularly review how so-called end-users, such as foreign authorities, handle personal data in the Visa Information System (VIS) and the Schengen Information System (SIS). The embassy has primarily been selected for review due to the high proportion of visa applications it processes.

IMY has reviewed the processing of personal data during an on-site inspection of the embassy in Bangkok in April 2024. During the review, IMY asked questions to the staff and observed how the employees handled visa cases. The on-site inspection also included an inspection of the external service provider. IMY has posed questions to representatives of the service provider and observed the staff's work with receiving visa applications, valuable documents, and the recording of alphanumeric data and biometrics. IMY has also inspected the service provider's handling of the documents submitted by the applicants.

In addition, a questionnaire and supplementary questions were sent to the embassy, which provided additional statements.

Finally, IMY visited the Swedish Migration Agency in Norrköping to check the logs from the queries made during the inspection of the embassy.

2.2 On the embassy's handling of personal data in visa applications

During the supervision, the following has primarily emerged.

The embassy is an end-user of both the VIS and SIS systems and a user of the Migration Agency's systems Wilma and W2. During the inspection, IMY observed when locally employed staff and decision-makers acted and performed queries in the Wilma and W2 systems, including the checks conducted against the Visa Information System, VIS, and the Schengen Information System.

The embassy functions as a so-called HUB for visa applications and handles applications from Vietnam, the Philippines, Myanmar, South Korea, Indonesia, Japan, Malaysia, Cambodia, and Singapore, in addition to those from Thailand.

The Migration Unit at the embassy processes the visa applications that come in from all the countries for which the embassy is a HUB. At the embassy, there are officials from the Migration Agency who act

as decision-makers, as well as locally employed staff who handle incoming cases. The staff at the embassy process visa applications in the Migration Agency's systems Wilma and W2, which are accessed via UM Net, the intranet for foreign authorities, which in turn is accessed through the Government Offices' intranet. The locally employed staff and the officials have different permissions to Wilma and W2.

Visa applicants submit their information and documents to the external service provider VFS Global. The biometric and alphanumeric data collected by VFS Global is sent electronically to the embassy, while the physical documents, such as passports and certificates, are sent in locked shipments. Every nine months, inspections are conducted at each VFS center in the region, during which data protection is reviewed. The Nordic countries' embassies cooperate in carrying out the inspections and share the responsibility for this.

2.3 VFS Global's handling of personal data as a data processor

During the supervision, IMY also inspected the external service provider's visa center in Bangkok, which receives applicants on behalf of the embassy. During the inspection, IMY followed the case management process at VFS Global. VFS Global has also responded to written questions from IMY. There is a framework agreement between the Government Offices and VFS Global, along with an annexed data processing agreement between the Migration Agency and VFS Global, which regulates the personal data processing that VFS Global performs in relation to visa applications to Sweden. In addition,

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There is a local agreement between VFS Global and the Embassy of Sweden in Bangkok / Migration Agency.

During the supervision, VFS Global has primarily stated the following.

All personnel at VFS Global are locally employed, and there are ten employees working with visa matters for Sweden. Each employee primarily handles visa applications for one country and secondarily for another country. All newly hired employees undergo mandatory training regarding data protection and information security. A background check is also conducted before employment begins. In the premises, four desks are dedicated to applicants regarding Sweden. Information about registered rights is available in English on various posters in VFS Global's premises. Information is also available on VFS Global's website, including in the local language.

In addition, certain information regarding individuals' rights is provided when the application is made, as the applicant is required to sign a consent form for personal data processing. This information is provided in English and Thai.

VFS Global has also accounted for data security in personal data processing during the supervision. VFS has, among other things, explained how physical documents are handled, how biometric data is quality assured, and how information security is guaranteed both in the physical premises and in the digital environment.

3. Justification of the Decision

3.1 Account of Applicable Legislation

The rules regarding member states' handling of visa applications to the Schengen area are outlined in the VIS Regulation and the so-called Visa Code. In visa applications, the applicant is checked against the Schengen Information System (SIS) to see if there are any registrations concerning the person in the system.

The processing of personal data in SIS for visa authorities is primarily regulated by the so-called Border Regulation. Article 51 of the Border Regulation states that the Data Protection Regulation shall apply to the personal data processing carried out by competent authorities under the Border Regulation. According to Recital 17 of the VIS Regulation and Article 94 of the Data Protection

Regulation, the provisions of the Data Protection Regulation are applicable to member states' processing of personal data under the VIS Regulation. The Migration Agency's and foreign authorities' processing of personal data is also regulated by supplementary legislation in the Aliens Data Act (2016:27).

IMY's corrective powers follow from the Data Protection Regulation.

3.2 What the Review Covered and IMY's Assessment

IMY has checked whether the embassy's processing of personal data complies with the legislation outlined in section 3.1 above. In the review, IMY has particularly focused on individuals' rights, the security of the data being processed, and whether the employees have the required training. IMY has observed the handling of cases at both the embassy and VFS Global. During the inspection, no deficiencies regarding the personal data processing that VFS Global performs for the embassy were found.

IMY notes that nothing in the investigation of the case has led IMY to question whether the Embassy of Sweden in Bangkok has failed to comply with the VIS Regulation, the Border Regulation, or the Data Protection Regulation.

The case shall therefore be closed.

This decision has been made by the unit manager Jonas Agnvall after presentation by the lawyer Elena Mazzotti Pallard.

Jonas Agnvall

Copy to

The Migration Agency's Data Protection Officer

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How to Appeal

If you wish to appeal the decision, you must write to IMY. Indicate in the letter which decision you are appealing and the change you are requesting. The appeal must be received by IMY within three weeks from the day you were notified of the decision. However, if you are a party representing the public interest, the appeal must be received within three weeks from the day the decision was announced. If the appeal is submitted in a timely manner, IMY will forward it to the Administrative Court in Stockholm for consideration.

You may email the appeal to IMY if it does not contain any sensitive personal data or information that may be subject to confidentiality. The authority's contact details are provided on the first page of the decision.

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